

OFFICE OF THE SECRETARY

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October 16, 2018

Honorable Dorothy L. Shubin
Judge of the Superior Court
County of Los Angeles
11701 South La Cienega Boulevard
Los Angeles, CA 90045

Re: Wu, Marco
CDC No.: AM6310
Case No.: GA081789-03
Date of Sentence: 09/28/2012

Dear Honorable Dorothy L. Shubin:

The purpose of this letter is to provide the court with authority to resentence Marco Wu pursuant to Penal Code Section 1170, subdivision (d)¹. This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence. As of June 27, 2018 a court's power to resentence under this section expressly extends to judgments entered after a plea agreement, if in the interest of justice.

Inmate Wu was sentenced in 2012, and was convicted of section 245, subdivision (A)(1), ASSAULT W/DEADLY WPN. The trial court sentenced inmate Wu on 09/28/2012. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22. Both sentence enhancements were attached to Inmate Wu's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

¹ All further statutory references are to the Penal Code unless otherwise indicated.

Based on the above facts and case law, it appears that inmate Wu's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled² and that he be resentenced³ in accordance with the cited authority.

Sincerely,



RALPH M. DIAZ
Secretary (A)

Enclosures:

Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Private Attorney

² Please be advised that victims may be entitled to reasonable notice of any public hearings, and to be heard at said hearings upon request (Cal. Const., art. I, § 28, subd. (b), pars. (7) and (8)).

³ Pursuant to *People v. Kemper* (1980) 112 Cal. App. 3d 434, (re)sentencing that results in an inmate being overdue for release will result in custody credits in excess of the inmate's maximum term of confinement being applied to shorten the parole term. If a court wishes to maintain what it considers to be an adequate supervisory term under those circumstances, the court may request the inmate waive enough credits to preserve an adequate supervisory term. If a court indicates in the abstract of judgement that custody credits have been waived by an inmate to allow for a specified parole term, CDCR will calculate the appropriate number of post-sentence credits that will need to be waived to allow for the specified parole term after the inmate's release.

OK TO GO STWD NOTED
04/17/12 DCFELONY ABSTRACT OF JUDGMENT—DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM
(Not to be used for multiple count convictions or for 1/3 consecutive sentences)

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES		AM6310	
PEOPLE OF THE STATE OF CALIFORNIA vs DEFENDANT: WU, MARCO AKA: CII NO.: A31423721 BOOKING NO.: 1383129-2798-524 ☐ NOT PRESENT		CASE NUMBER GA081789-03	
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT ☐ AMENDED ABSTRACT			
DATE OF HEARING 09-28-2012	DEPT. NO. NE B	JUDGE DOROTHY L SHUBIN	
CLERK JULIE OSDALE	REPORTER MONICA Y PONCE	PROBATION NO. OR PROBATION OFFICER X-2065538 ☐ IMMEDIATE SENTENCING	
COUNSEL FOR PEOPLE DONNA HOLLINGSWORTH		COUNSEL FOR DEFENDANT SIMON AVAL, PVT ☐ APPOINTED	

1. Defendant was convicted of the commission of the following felony:

COUNT	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	JURY	COURT	PLEA	TERM (L, M, U)	TIME IMPOSED
02	PC	245(A)(1)	ASSAULT W/DEADLY WPN	2010	09-28-12			X	M	3 0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
02	12022.7	3	186.22(B)(1)(C)	10			13 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. Defendant sentenced ☒ to prison per PC 1170(a) or (h)(3) ☐ to county jail per PC 1170(h)(1) or (2) ☐ per PC 667(b)-(l) or PC 1170.12 (strike prior) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. Defendant was ordered to report to local Parole Office upon release.

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

Restitution Fine(s): \$200.00 per PC1202.4 (b) forthwith per PC 2085.5 if prison commitment \$200.00 per PC 1202.45 suspended unless parole is \$ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC1202.4 (f): ☐ \$ Amount to be determined to ☐ * victim(s) ☐ Restitution Fund
* ☐ Victim name(s), if known, and amount breakdown in item 8, below. * ☐ Victim name(s) in probation officer's report.Fine(s): \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.
☒ Court Security Fee of \$40.00 per PC 1465.8. ☒ Criminal Conviction Assessment of \$30.00 per GC 70373.6. TESTING: a. ☒ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☐ other (specify):7. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post sentence report to CDCR per PC 1203c. Deft's Race / National Origin OA

8. Other orders (specify):

9. TOTAL TIME IMPOSED: 16 0

10. ☐ MANDATORY SUPERVISION: Execution of a portion of the total jail time imposed in item 9 is suspended and deemed a period of mandatory supervision under PC 1170(h)(5)(B) as follows: Suspended portion: Served forthwith:11. ☒ This sentence is to run concurrent with (specify):12. REGISTRATION REQUIREMENT: ☒ per (specify code section): 186.30 PC13. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify):

DATE SENTENCE PRONOUNCED	CREDIT FOR TIME SPENT IN CUSTODY TOTAL DAYS:	ACTUAL LOCAL TIME	LOCAL CONDUCT CREDITS	TIME SERVED IN STATE INSTITUTION
09-28-2012	774	673	☐ 2933 ☐ 2933.1 ☐ 4019	DMH CDCR CRC [] [] []

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.☐ county jail ☐ Other (specify):

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE: Mr. [Signature] DATE 10-11-2012

This form is to be used under PC 1213.5 to satisfy the requirements of PC 1213 for determining sentences. Attachments may be used but must be referred to in this document. Page 1 of 1